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File No.: EXP202407017

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ENCAS ADMINISTRACIONES, S.L. (hereinafter, ENCAS), through the agreement that is transcribed:

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File No.: EXP202407017

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant), on April 24, 2024, filed a complaint with the Spanish Agency for Data Protection. The reported facts reveal a possible infringement attributable to ENCAS ADMINISTRACIONES, S.L. with NIF B03907094.

The known facts are as follows:

The claimant states that the property management in question sent an email, dated 01/24/2023, to all co-owners attaching a copy of a complaint filed by her with the Territorial College of Property Administrators of Alicante, which includes her personal data (name, surname, ID number, mobile phone, postal address, and email).

Furthermore, she states that, previously and also via email, the responding party sent her a copy of a sales deed from another co-owner, which includes this person's personal data (name, surname, ID number, marital status, bank account number, etc.).

Initially, the following documentation is available: an email addressed to all neighbors, which included two files, one with the complaint made to the Territorial College of Property Administrators of Alicante and another with the resolution to this complaint, containing a screenshot of the complaints and claims form referred to, and another email, addressed to the claimant, with a screenshot of the aforementioned deed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to ENCAS ADMINISTRACIONES, S.L., for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responding party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 06/01/2024, as stated in the certificate in the file.

Although the notification was carried out by electronic means, for informational purposes, a copy was sent by postal mail, which was duly notified on 06/12/2024.

In this notification, the responding party was reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On 06/21/2024, a written response was received by this Agency indicating that:

- The claimant during the period of (...) of 2023, held the position of President of the indicated Community and as acting president, acted in the name and representation of the community before the College of Administrators of Alicante.
- The email with the copy of the complaint filed was sent to all neighbors as they were aware of this matter and it was filed on behalf of the co-owners.

- The second email, referring to the copy of the deed of another owner, was only sent to the claimant as she was the president of the community at that time and had indicated that she should be informed of all sales.

THIRD: On July 22, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

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FOURTH: According to the report collected from the AXESOR tool, the entity ENCAS ADMINISTRACIONES, S.L. is a microenterprise established in 1994, with a business volume of (...) euros in 2019.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that ENCAS ADMINISTRACIONES, S.L. is processing personal data in its activity, as established in Article 4.2 of the GDPR:

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“processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction; ENCAS ADMINISTRACIONES, S.L. carries out this activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

“data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller

or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

VII

Unfulfilled Obligation. Principles Relating to Processing

Letter f) of Article 5.1 of the GDPR states:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures (“integrity and confidentiality”).”

In the present case, from the email of ENCAS ADMINISTRACIONES, S.L., a message was sent to all owners, which included the personal data of the president of the community, included in the copy of the complaint filed by her in the exercise of her position.

In a community of owners, the legal representative will be the person holding the presidency, who must also be one of the owners. This representation is made by delegation.

ENCAS ADMINISTRACIONES, S.L., as the administrator of the property, is authorized to process and manage the data of the owners that are necessary for the ordinary management of community affairs, but this does not authorize it to disseminate the personal data of an owner, even if they are currently holding the presidency, to the other community members or to third parties, without a legal basis for doing so.

It should be noted that unauthorized access to personal data by a third party means that such data may be used for unknown purposes, including fraudulent ones, resulting in a total and absolute loss of control over them.

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On the other hand, according to Article 20 e) of the Horizontal Property Law, it is the responsibility of the administrator to safeguard the documentation of the community for the holders' availability. Data protection regulations do not allow for generalized access to all documentation held in the community's files, but only to those data that are strictly relevant, adequate, and limited in relation to the purposes for which they are processed. Therefore, sending a copy of deeds via email to the claimant regarding the property of another co-owner may not comply with the principle of proportionality, being neither suitable, necessary, nor balanced to achieve the intended purpose.

Thus, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to ENCAS ADMINISTRACIONES, S.L., for violating the previously transcribed article.

VIII

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of the data subjects under Articles 12 to 22;

c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;

d) any obligation under the law of the Member States adopted pursuant to Chapter IX;

e) the failure to comply with a resolution or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to

provide access in violation of Article 58, paragraph 1."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

IX

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

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"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, considering the severity of the established infringement, particularly regarding the consequences that its commission causes to the claiming party, the imposition of a fine is warranted, in addition to the adoption of measures, where applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of microenterprise and the turnover of ENCAS ADMINISTRACIONES, S.L. ((...) € in the year 2019) are considered beforehand.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for the initial setting of an administrative fine of 500.00 euros.

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Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”

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Thus, the responsible entity may be required to adjust its actions to comply with the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of the personal data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, the resolution adopted may require ENCAS ADMINISTRACIONES, S.L. to, within a period of 1 month from the date of effectiveness of the resolution concluding this procedure, provide proof of having adopted appropriate measures to prevent incidents like those that led to the initiation of the procedure in the future and to avoid the dissemination of personal data of the neighbors without their consent.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement

in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may motivate the initiation of a further administrative sanctioning procedure. Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, if applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to provide proof to this AEPD of compliance with that obligation.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST:

TO INITIATE

SANCTIONING PROCEDURE

against ENCAS ADMINISTRACIONES, S.L., with NIF B03907094, for the presumed infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: INCORPORATE into the file, for evidentiary purposes, the claim filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorato of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in art. 64.2 b) of the LPACAP, the sanction that may correspond would be an administrative fine of 500.00 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to ENCAS ADMINISTRACIONES, S.L., with NIF B03907094, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that should be imposed in this procedure. With the application of this reduction, the sanction would be set at 400.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 400.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 300.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, it must send to the General Subdirectorato of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it opts for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated

above (400.00 euros or 300.00 euros), it must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 24, 2024, ENCAS proceeded to pay the sanction in the amount of 300.00 euros, making use of the two reductions provided in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: ENCAS has expressly renounced any action or administrative appeal against the sanction.

FOURTH: In the initiation agreement transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the

determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 300.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, ENCAS has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or administrative appeal.

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It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure shall decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 500.00 euros.

After ENCAS ADMINISTRACIONES, S.L. has made the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 300.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202407017, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER ENCAS ADMINISTRACIONES, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution within 1 month from the date this resolution becomes final and enforceable.

FOURTH: TO NOTIFY this resolution to ENCAS ADMINISTRACIONES, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal, the express renunciation manifested by ENCAS ADMINISTRACIONES, S.L. is accepted by this authority, thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no administrative appeal available due to the express renunciation, this resolution shall be final and fully

enforceable from the date of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution may be provisionally suspended in the administrative route if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case,

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In this case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the position of Presidency and Deputy Presidency

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